

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK**

HARPER KAYE HENDRICKSON,

*Plaintiff,*

-against-

CITY OF NEW YORK; EDWARD CABAN, as  
Commissioner of the New York Police  
Department; JEFFREY MADDREY, as Chief of  
Department; JOSEPH KENNY, as Chief of  
Detectives of the New York Police Department;  
Executor of the Estate of JOEL DOSEAU,  
POLICE OFFICER ODO PENNISTON, POLICE  
OFFICER JOHN MONTAPERTO, POLICE  
OFFICER JENNIFER LEW, and “John Doe No. 1  
to John Do No. 10”

*Defendants.*

**Index Number: 952379/2023**

**VERIFIED COMPLAINT**

Plaintiff Harper Kaye Hendrickson,<sup>1</sup> by their attorneys, Vasquez Segarra LLP, as and for  
their complaint against Defendants respectfully alleges as follows, for their complaint:

**PRELIMINARY STATEMENT**

1. For twelve years, from July 2003 until August 2015, Joel Doseau was employed as  
a Police Officer of the New York City Police Department (“NYPD”), tasked with upholding the  
laws of the state of New York and keeping the public safe.

2. Mr. Doseau was also a pedophile rapist and groomer who, for six years,  
manipulated Plaintiff into serving, in Doseau’s own words, as his “f\*ckdoll.”

<sup>1</sup> At all times relevant to events alleged, Plaintiff was identified as a female under their name assigned at birth.  
Plaintiff is a transexual nonbinary person whose pronouns are they/them, and by petition filed with the Civil Court  
of the City of New York has assumed the name Harper Kaye Hendrickson since January 2020.

3. In 2013, while Mr. Doseau maintained a predatory relationship with Plaintiff and actively sought other children to groom, he was promoted by the NYPD to the rank of Sergeant.<sup>2</sup>

4. Plaintiff currently experiences severe and debilitating physical and psychological injuries due to the abuse Plaintiff suffered while aged 14 to 21 at the hands of Doseau.

5. But just as harmful and dehumanizing as the abuse itself, was the hostile questioning and negligent incompetence Plaintiff was forced to endure by Sergeant Doseau's coworkers when Plaintiff courageously came forward.

6. The NYPD's Special Victims Division has a long history of neglect, indicative of the NYPD's overall attitudes that deemphasize sexual assault that does not fit neatly into the category of "stranger" rape and consistent understaffing and inadequate training. The NYPD's Internal Affairs Bureau has a demonstrable track record of significant deficiencies in handling misconduct investigations generally, and sexual crimes specifically.

7. Both of these long-plagued departments cooperated to mistreat, dehumanize, and sabotage Plaintiff's reporting from the very day they walked into an NYPD Precinct to report Sergeant Doseau.

8. From Plaintiff's first interaction with IAB on May 13, 2015, it was apparent that IAB had little to no training on how to handle Special Victim cases. Plaintiff was subjective to hostile questioning as IAB took every opportunity to twist their questioning and answers to fit a "spurned lover" narrative.

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<sup>2</sup> Sadly yet predictably, this is not an isolated incident within the NYPD. As further discussed below, also in 2013, another NYPD sergeant, Vladimir Krull, was beginning to have an abusive relationship with a then-13 year old girl. See *NYPD Sergeant Accused of Raping Girl, 13*, February 11, 2015, <https://www.nbcnewyork.com/news/local/nypd-sergeant-arrested-sex-abuse-minor-rape-police/2011591/> and *NYPD sergeant convicted of twice raping girlfriend's daughter, 13, and forcing her to perform sex act on him at school after taking her to the father/daughter breakfast gets just THREE years in prison* March 13, 2017, <https://www.dailymail.co.uk/news/article-4310406/NYPD-sergeant-convicted-raping-girl-13-gets-3-years.html>. Sergeant Krull was arrested on multiple counts of rape and sex abuse in 2015, the same year that Sergeant Doseau was ultimately arrested after Plaintiff courageously came forward..

9. Instead of handling the serious allegations against one of their own in a deliberate and careful manner, “New York’s finest” deliberately undercut the investigation. The sexually abusive and grooming relationship started the summer of 2007 (when Plaintiff was 14 years old) and lasted until 2013, when Plaintiff at the age of 21 cut off contact with Doseau. As such, Plaintiff suffered years of violent rape and other forms of sexual abuse for years after reaching 17 years of age. But IAB asserted that because 17 was the legal age of consent, any of the sexual assault Plaintiff suffered after this point was consensual, which conveniently had the effect of limiting the scope of their investigation. Whatsmore, IAB told Plaintiff that this “post-17” abuse had no place in the investigation, and effectively placed a gag order on Plaintiff by – misleadingly – warning Plaintiff that the only way law enforcement could keep Plaintiff’s identity anonymous was by focusing on the abuse that Plaintiff experienced prior to reaching 17.<sup>3</sup>

10. The very same day Plaintiff came forward and exhaustingly recounted the details of their abuse, IAB conscripted Plaintiff into emotionally traumatizing investigative steps, such as rushed scene visits and having Plaintiff participate in cataloging the pornographic photos that Sergeant Doseau had manipulated Plaintiff into creating and sending to him for years.

11. The Queens District Attorney’s Office only compounded Plaintiff’s trauma, as Special Victim Unit Chief Kenneth Appelbaum<sup>4</sup> coerced Plaintiff into making a controlled call to their abuser with comments such as, in sum and substance, “if you can’t even handle a controlled call, how do you expect to talk about this with strangers or in court?”

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<sup>3</sup> This explains why, when it came time to indict Sergeant Doseau, there was no mention of the sexual abuse that Plaintiff suffered after the age of 17. The warning by IAB essentially scared Plaintiff into being silent about this abuse in subsequent interviews by the Kings and Queens District Attorney’s Offices.

<sup>4</sup> As discussed below, Appelbaum has a track record of prosecutorial misconduct and in 2021, five law professors filed an ethics complaint calling for his disbarment citing a case where the Queens Supreme Court expressly noted that Appelbaum “in many instances breached his duty as a quasi-judicial officer” and “attempted to instill his influence and bias into the case.” See *infra* note #, and accompanying text.

12. Plaintiff's report to the NYPD was clear: the Sergeant was preying upon other underaged youth. The emails from Sergeant Doseau that Plaintiff provided to NYPD spoke for themselves:

all other girls are just for fun. we can change toys, if one we don't like one .. then we move on, not even giving the toy a second thought. i dont care about [name redacted], all i want is just to fuck her.<sup>5</sup>

13. Eventually, NYPD turned over the fruits of their inadequate investigation to the Kings County District Attorney's Office ("KCDA"). On August 3, 2015, KCDA filed a 40-count criminal indictment with the New York Supreme Court, Kings County. (Attached as Exhibit 1).

14. Despite the above sabotaging of Plaintiff's cooperation, Sergeant Doseau was arrested on August 5, 2015, and his prosecution was abated by death in subsequent months.<sup>6</sup>

15. On the day of Sergeant Doseau's arrest, IAB recovered, *inter alia*, a laptop, camcorder, several hard drives, and five cell phones pursuant to a search warrant that specifically authorized forensic searches of recovered.<sup>7</sup> Despite this, Plaintiff was never advised of the results of any forensic searches or examinations. To date, the true extent of the Sergeant's misconduct, and Defendant City of New York's enabling and willful blindness, remains unknown.

16. Plaintiff's life has been irreversibly altered by the debilitating psychological and physical effects of their abuser, and the callously indifferent way their abuser's colleagues mishandled Plaintiff's report, gagging Plaintiff's full story and kicking it to another borough.

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<sup>5</sup> Plaintiff has obtained these and other emails via Freedom of Information Law Requests to various law enforcement agencies.

<sup>6</sup> Sergeant Doseau was "found dead with a plastic bag over his head" on August 20, 2015. *Brooklyn Cop Accused Of Raping Girl Kills Himself*, <https://gothamist.com/news/brooklyn-cop-accused-of-raping-girl-kills-himself> (last accessed April 11, 2024).

<sup>7</sup> These items were recovered pursuant to a search warrant, discussed *infra*, which explicitly authorized forensic searches of recovered property.

17. The NYPD's bias against the transgender and intersex communities has only gotten worse.

18. Plaintiff now brings this action pursuant to the New York Adult Survivors Act and related laws to seek justice and accountability from all those responsible.

### **PARTIES**

19. Defendant City of New York (the "City") is a municipality organized and existing under the laws of the State of New York. At all times relevant to the events described herein, the City, acting through the New York City Police Department (the "NYPD"), has been responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters, and has been responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the City has been responsible for enforcing the rules of the NYPD, allocating resources, and ensuring that NYPD personnel obey the laws of New York City. At all relevant times, the members of the NYPD whose conduct forms the basis of Plaintiffs' claims against the City have been employed by the City and acting within the scope of their employment by the City.

20. Defendant Edward Caban, as Commissioner of the NYPD and is responsible for its operation. Defendant Caban's office is located at One Police Plaza in Manhattan. Defendant Caban has the power and duty to perform any duty imposed upon the NYPD, including the operation of all investigative branches of the NYPD. He is sued in his official capacity. At all times relevant to the events described herein, Defendant Caban and those who held his position before him have acted under color of law of the State of New York and in their capacity as agents, servants, and employees of Defendant City of New York, and within the scope of their employment as such.

21. Defendant Jeffrey Maddrey, is the Chief of Department of the NYPD. Defendant Maddrey's office is located at One Police Plaza in Manhattan. He is sued in his official capacity. At all times relevant to the events described herein, Defendant Monahan and those who held his position before him have acted under color of law of the State of New York and in their capacity as agents, servants, and employees of Defendant City of New York, and within the scope of their employment as such.

22. Defendant Joseph Kenny is Chief of Detectives of the NYPD. Defendant Kenny's office is located at One Police Plaza in Manhattan. He is sued in his official capacity. At all times relevant to the events described herein, Defendant Kenny and those who held his position before him have acted under color of law of the State of New York and in their capacity as agents, servants, and employees of Defendant City of New York, and within the scope of their employment as such.

23. As detailed below, Joel Doseau was found dead on August 20, 2015. At the time of his death, Doseau resided in New York.

24. The Estate of Doseau was created upon the death of Doseau.<sup>8</sup> The Executor of the Estate of Joel Doseau is Secile Doseau.

25. At all relevant times, Defendant Odo Penniston was a Sergeant in the Internal Affairs Bureau of the NYPD and an employee of the New York City Police Department.

26. At all relevant times, Defendant John Montaperto was a Lieutenant in the Internal Affairs Bureau of the NYPD and an employee of the New York City Police Department.

27. At all relevant time, Defendant Jennifer Lew was a Police Officer in the Special Victims Unit.

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<sup>8</sup> On March 7, 2016, filed a Petition for Probate and Letters Testamentary with the Surrogate's Court of the County of Kings.

**JURISDICTION AND VENUE**

28. The Court has jurisdiction because the City of New York is a municipal corporation organized under the laws of the State of New York and is headquartered in New York County.

29. Venue is proper under C.P.L.R. § 504, as a substantial portion of events giving rise to Plaintiffs' claims against Defendants occurred in New York County and the Executor of the Estate of Joel Doseau resides in New York County.

**JURY DEMAND**

30. Plaintiff hereby demands a trial by jury.

**STATUTORY FRAMEWORK**

31. On May 24, 2022, the New York State Adult Survivors Act ("ASA") went into effect, creating a one-year lookback window—commencing November 24, 2022—for survivors of sexual assault that occurred when they were over the age of 18 to bring causes of action relating to when the abuse occurred.

32. The ASA applies to "every civil claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute a sexual offense" as defined in New York Penal Law Article 130. CPLR § 214- j.

33. The New York City Victims of Gender-Motivated Violence Protection Law ("VGMVPL") provides a cause of action to "any person claiming to be injured by an individual who commits a crime of violence motivated by gender." N.Y.C. Admin. Code. § 10-1104.

34. Under the VGMVPL, a "crime of violence" is defined to include "an act or series of acts that would constitute a misdemeanor or felony against the person as defined in state or

federal law . . . if the conduct presents a serious risk of physical injury to another.” N.Y.C. Admin. Code § 10-1103.

35. The VGMVPL defines the term “crime of violence motivated by gender” as “a crime of violence committed because of gender or on the basis of gender, and due, at least in part, to an animus based on the victim’s gender.” N.Y.C. Admin. Code § 10-1103.

36. “Without consent, sexual acts” such as sexual assault are “a violation of the victim’s bodily autonomy and an expression of the perpetrator’s contempt for that autonomy.” *Breest v. Haggis*, 180 A.D.3d 83, 95 (1st Dep’t 2019). Thus, for the purposes of the VGMVPL, “[m]alice or ill will based on gender is apparent from the alleged commission of [sexual assault] itself.” *Id.* “Animus inheres where consent is absent.” *Id.*

37. When the New York City Council passed the VGMVPL, it framed the law using gender-neutral terms and made clear that the Council’s legislative intent was “to cover all victims of gender-motivated violence” and “any variation of gender-motivated violence,” regardless of the gender of the victim or perpetrator.

38. The New York City Victims of Violent Crime Protection Act (“VVCPA”) provides a civil cause of action to “any person claiming to be injured by an individual who commits a crime of violence,” N.Y.C. Admin. Code. § 10-403, which is defined to include “an act or series of acts that would constitute a misdemeanor or felony against the person as defined in state or federal law or that would constitute a misdemeanor or felony against property as defined in state or federal law if the conduct presents a serious risk of physical injury to another,” N.Y.C. Admin Code § 10-402.

### **FACTUAL ALLEGATIONS**

#### ***Background and Nature of the Relationship***



39. Plaintiff was born in 1992 and spent most of their childhood residing in New York.

40. Doseau was born in 1971 and in April 2003 submitted his application for appointment to the NYPD.

41. Doseau was appointed to the NYPD as a Police Office in July 2003, at the age of 31. In July 2003, Plaintiff was 10 years old.

42. Officer Doseau was assigned to the 90th Precinct in January 2004, then to the 60th Precinct in June of 2004, before being reassigned to the 90 Precinct in September 2004.

43. In the summer months of 2007, Officer Doseau met and befriended Plaintiff – Plaintiff was 14 years old at the time – via the online platform Skype. Officer Doseau lied about his age and job to Plaintiff, and led Plaintiff to believe that Officer Doseau was in fact 18 years old and attending New York University as an undergraduate student.

44. In fact, Officer Doseau was 35 years old and able to apply interviewing and interrogation skills he learned as a member of the NYPD to earn Plaintiff's trust and then exploit Plaintiff's naivete into a position of total submission. Plaintiff was in a vulnerable situation when they met Officer Doseau, as Plaintiff was living with abusive and unsupportive family members.

45. Officer Doseau manipulated Plaintiff into a toxic relationship where Plaintiff felt emotionally dependent on and obedient to Officer Doseau, eventually referring to him as "master." Officer Doseau's primary objective behind this was his own sexual gratification. Over the years of the abuse (when Plaintiff was aged 14 to 21), Doseau would command Plaintiff to create thousands of images and videos of themselves and send them to Doseau, i.e. create and transmit child pornography.

46. During one of their initial conversations via Skype, Officer Doseau asked Plaintiff what Plaintiff was doing. When Plaintiff replied that they had just come out of the pool, Officer

Doseau video called Plaintiff and coerced Plaintiff into stripping and touching themselves in a sexual manner.

47. From then on, Officer Doseau would routinely order Plaintiff to engage in child pornography in two main ways: (1) ordering Plaintiff to take videos and pictures of themselves performing sexual acts and then sending them to Officer Doseau, or (2) ordering Plaintiff to perform these sex acts in “real time” through video calls. Each of these types of abuse, objectification, and brainwashing caused distinct but profound physiological harm on Plaintiff.

48. Throughout the relationship, Officer Doseau’s leverage was psychological, wherein he would yo-yo between extremes: encouraging Plaintiff to visit him and promising that he would take care of and provide for Plaintiff, and then scolding and threatening to withhold financial support to Plaintiff if Plaintiff ever resisted Officer (later Sergeant) Doseau’s commands. Sergeant also threatened to kill the Plaintiff if the Plaintiff did not obey him and physically assaulted the Plaintiff using NYPD restraining tactics.

49. Plaintiff would eventually learn that Officer Doseau was himself a survivor of childhood sexual abuse by his own family members, which manifested itself in incestuous fantasies that Officer Doseau expressed to Plaintiff and the violent, “corrective rape” that Officer Doseau would inflict upon Plaintiff once he learned that Plaintiff was intersex.

***Officer Doseau Begins to Groom and Sexually Exploit Plaintiff***

50. After meeting via Skype, Officer Doseau eventually proposed for Plaintiff to meet him person at Penn Station and walked around Manhattan. Officer Doseau explicitly encouraged Plaintiff to invite Plaintiff’s 14-year-old female friend to the meeting. Officer Doseau attempted to groom Plaintiff’s friend, by trying to befriend her and offering to buy her clothes.

51. At all relevant times, Officer Doseau was significantly taller and heavier than Plaintiff.

52. After this first meeting in the summer 2007, Officer Doseau resumed his sexually explicit conversations with Plaintiff, constantly urging Plaintiff to masturbate and shave their genitals, and to send pictures in regards. The KCDA Indictment addressed some of these crimes, by alleging that Officer Doseau committed multiple sex offense violations, including Use Of A Child In A Sexual Performance (Penal Law 263.05) and Use Of A Child In A Sexual Performance As A Sexually Motivated Felony (Penal Law 263.05/ Penal Law 130.91).

53. In the summer of 2008, when Plaintiff was 15 years old and Officer Doseau was 36 years old, Officer Doseau again invited Plaintiff to meet in person in New York.

54. Plaintiff at that time was residing in New York state, but did not drive and had to take a bus to Queens County to met Officer Doseau at a diner in Flushing, Queens.

55. By this point, Officer Doseau had gained Plaintiff's trust and drove Plaintiff to Officer Doseau's mother's residence, where Officer Doseau raped Plaintiff for the first time.

56. Officer Doseau held a hatred for Plaintiff's intersex nature, and explicitly told Plaintiff that because Plaintiff was born with a prostate, it was necessary for Officer Doseau to anally rape Plaintiff as a form of correction.

57. Officer Doseau gave Plaintiff an enema kit and forced Plaintiff to use it, despite Plaintiff's fearful crying and begging for relief. That night, Officer Doseau committed oral, vaginal, and anal rape on Plaintiff.

58. Once Officer Doseau was finished, he returned Plaintiff to the bus stop.

59. The KCDA Indictment addressed these crimes, by alleging that Officer Doseau committed multiple sex offense violations, including Rape in the Third Degree (Penal Law 130.25(2) and Criminal Sexual Act in the Third Degree (Penal Law 130.40(2)).

60. Related to Officer Doseau's hatred towards Plaintiff's intersex nature was Officer Doseau's insistence that Plaintiff take birth control to affect Plaintiff's hormones. Using a combination of coercive control and traumatic bonds, Officer Doseau had Plaintiff regularly take birth control and subject themselves to "corrective rape" so that Plaintiff could become the "perfect girl" for Officer Doseau.

#### **Officer Doseau Continues the Grooming Relationship through Summer of 2009**

61. Officer Doseau routinely used his NYPD training to manipulate and coerce the Plaintiff into seeing him.

62. According to NYPD records obtained by Plaintiff, Officer Doseau's first sick leave of his NYPD career began on November 10, 2008 and he did not return until December 5, 2008.

63. This coincided with Plaintiff's Thanksgiving holiday from school, during which Office Doseau guilt-tripped Plaintiff by explaining that he was taking time off work "for" Plaintiff and exploiting that guilt to further sexually abuse Plaintiff.

64. In the summer of 2009, when Plaintiff was living at a family member's residence in Long Island and aged 16 going on 17 while Officer Doseau was 37 years old, Officer Doseau arranged multiple meetings with Plaintiff at various locations including Officer Doseau's house, Officer Doseau's vehicle, and a hotel in Queens. At all these meetings, Officer Doseau insisted on having sexual contact, including anal and oral sex.

65. There was also a very violent rape in Southampton. Officer Doseau told Plaintiff that he wanted to pick up Plaintiff very early in the day to avoid the police and before Plaintiff's

family member woke up. Plaintiff snuck out of the family residence and walked to meet Officer Doseau's vehicle. Officer Doseau's language and body language seemed nervous to Plaintiff, and Officer Doseau recounted that he had been pulled over by police officers in Quogue, New York. Officer Doseau recounted to Plaintiff that he avoided getting in trouble with the police by showing them a picture of money in his wallet.

66. Officer Doseau's rape of Plaintiff in Southampton was especially violent, and Officer Doseau seemed angry that Plaintiff was beginning to ask questions about Officer Doseau's job.

67. Plaintiff did not turn 17 until August 5, 2009. As such, Plaintiff could not consent to any of the above-described sexual acts.

68. The KCDA Indictment addressed the New York City crimes, by alleging that Officer Doseau committed multiple sex offense violations, including three counts of Rape in the Third Degree (Penal Law 130.25(2)).

#### **In Fall 2009, Officer Doseau Visits Plaintiff in North Carolina**

69. By the fall of 2009, Officer Doseau was fully preying upon Plaintiff, and felt so comfortable and protected entering Plaintiff's life that he rented a cottage in North Carolina near Plaintiff's high school. During this visit, Officer Doseau picked up Plaintiff after Plaintiff got out of school and took Plaintiff to said cottage, where he violently raped Plaintiff.

70. Plaintiff tried to resist Officer Doseau and explained that Plaintiff was painfully menstruating. Officer Doseau ignored Plaintiff's concerns and raped Plaintiff as a form of punishment for having a heavy period, insulting Plaintiff for not being like "other girls" and telling Plaintiff that he would make Plaintiff into "another type of girl."

71. By November 2009, Plaintiff had turned 17 years old and Officer Doseau (now age 38) had escalated his predatory behavior. No longer content with child pornographic images, he was regularly coercing Plaintiff into attempting to recruit girls for “master.” For example, on December 3, 2009, after Plaintiff had sent Officer Doseau thirty-two sexual photographs of Plaintiff, Officer Doseau replied via email:

“it turned me on so much knowing all of that is mine .. to fuck and rape whenever i want...however I want..you are made for only one purpose .. for only master...i want you to be more into girls ....always thinking about attracting girls ... fantasizing about us doing another girl ...if possible .. i would want you to want girls more then i do ... that way you would make me want it even more ...but this all stuff you already know ..you know what i kind of girl i want.. be that girl.. all the way ..”<sup>9</sup>

72. Illustrating the depths of the lop-sided nature of this manipulative relationship, while Officer Doseau was in his late 30’s and working as an NYPD Officer, Plaintiff still had not finished high school but had spent hours hand-crafting a storybook of their “romance”:

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<sup>9</sup> As described below, Plaintiff forwarded a copy of this email to NYPD on the same day that Plaintiff first reported Officer (by then Sergeant) Doseau.

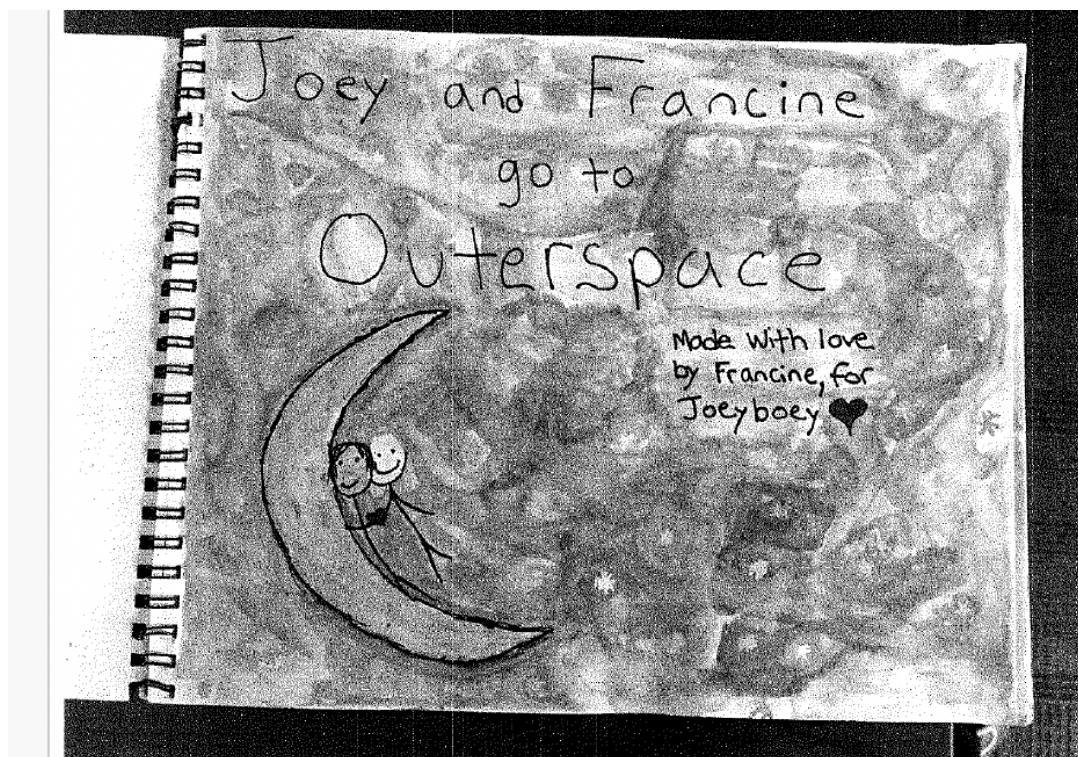


Figure 1 - Cover of the Book Plaintiff hand-crafted for Doseau.



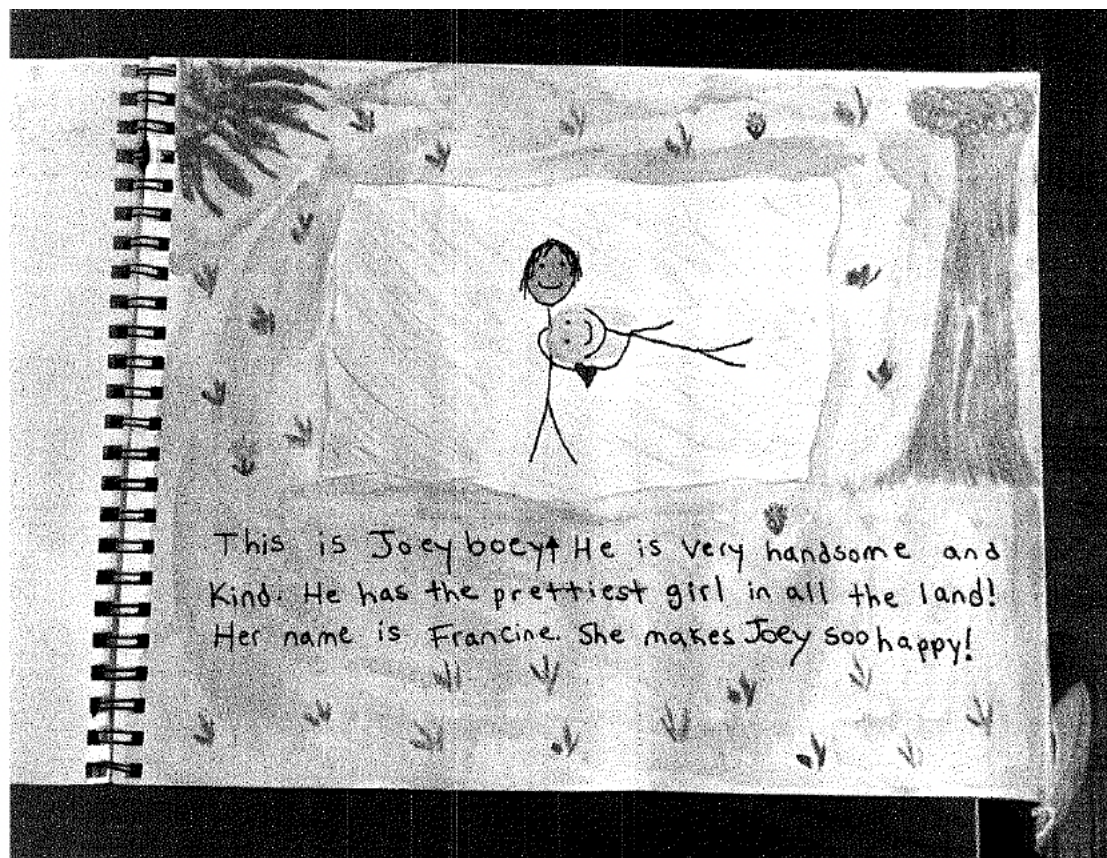


Figure 2 – Page of the Book Plaintiff hand-crafted for Doseau.

73. By January and February 2010, Officer Doseau was explicitly ordering Plaintiff to get closer to Plaintiff's classmates for his sexual gratification. A sample<sup>10</sup> of Officer Doseau's predatory instructions are as follows:

- February 17, 2010: "there is no need to introduce me ... just get closer to her ... see if you can touch her more...i was just thinking maybe it would be better to get her to fall for you .. that way she will use you as a security blanket.. get her to fall for you first before you introduce the threesome..... getting her to be with you .. seems to be easier then getting her to be with us ... once she is with you .. getting her to be with us...would be inevitable."

<sup>10</sup> As will be discussed below, Plaintiff provided these emails to NYPD on May 13, 2015, when Plaintiff first reported then-Sergeant Doseau's grooming and sexual abuse.



- February 18, 2010: "i sent [name of high school classmate of Plaintiff redacted] a [social media] request to add to my friend list .. and she accepted .. but i have never sent her a message or talked to her....p.s. hey find out the redhead's facebook page, and we can talk to her like that...i would be great to enjoy a natural redhead. i really would like that. that is a present you can give me .."

### **The Sexual Abuse Continues into Plaintiff's Adulthood and Officer Doseau Is Promoted to Sergeant**

74. In Plaintiff's senior year of high school, Plaintiff began developing a romantic relationship with one of Plaintiff's female friends, "N". By this point in the controlling relationship, Officer Doseau would regularly interrogate Plaintiff to 1) possessively evaluate if Plaintiff was developing a connection with someone else, and 2) evaluate Plaintiff's compliance with Officer Doseau's order to cultivate peer relationships with teenage girls for him to exploit.

75. Once Officer Doseau learned about "N," he would call Plaintiff when Plaintiff and "N" were together and command Plaintiff to let Officer Doseau speak with "N." Officer Doseau would then attempt to groom "N" by flirting with "N", asking "N" sexual questions, and encouraging "N" to shop at Victoria's Secret with Plaintiff.

76. Officer Doseau persuaded Plaintiff to graduate high school early and move to New York City, with promises that he had purchased an apartment in Williamsburg for them to live together and get married.

77. Plaintiff obeyed and finished high school at the age of 17 in the spring of 2009. Two days before the expected move-in date, Officer Doseau backed out of the plan and Plaintiff was forced to live with family members on Long Island.

78. During the summer months of 2009, Plaintiff would obey Officer Doseau's directions to take the bus into New York City and spend nights with Officer Doseau, during which he would sexually assault and rape Plaintiff.

79. During one of these visits, Officer Doseau told Plaintiff that he had found a girl for them to have a threesome with. When Plaintiff arrived to Officer Doseau's residence, Plaintiff observed an older woman blindfolded in Officer Doseau's bed. Officer Doseau commanded Plaintiff to perform sexual acts on this woman. When Plaintiff refused, Officer Doseau punished Plaintiff by roughly raping Plaintiff anally and vaginally and verbally abusing Plaintiff. Officer Doseau also forced Plaintiff to perform sexual acts on the woman. At some point afterwards, during a conversation in Officer Doseau's kitchen, the woman asked Plaintiff their age. Plaintiff replied that they were 17 years old, at which point the woman appeared shocked and angry with Officer Doseau, and left Doseau's apartment, located at 78 Roebling Street, #2A, Brooklyn NY, immediately thereafter.

80. Towards the end of summer of 2009, Plaintiff began traveling to Manhattan regularly to participate in teen poetry competitions through an organization called Urban Word NYC. But Plaintiff remained under Officer Doseau's manipulation, due to Plaintiff's financial need and the years of abusive brainwashing. Accordingly, on occasions when Plaintiff attended poetry events in Manhattan, Plaintiff would then spend the night with Officer Doseau and be subjected to sexual assault and oral, anal, and vaginal rape.

81. Moreover, Officer Doseau would often times "accompany" Plaintiff to these poetry events, explicitly mentioning to Plaintiff that his objective was to meet younger girls.

82. The above-mentioned pattern would continue throughout Plaintiff's "gap year" prior to starting college.

83. In the summer of 2011, Plaintiff was 18 years old and Officer Doseau would pick up Plaintiff on a regular basis, sometimes weekly from coordinated spots (e.g. bus stop) near Plaintiff's residence or instructed Plaintiff to meet at Officer Doseau's residence. Officer Doseau would take Plaintiff to his residence, sexually abusing Plaintiff in the car on the way to his apartment, where he would rape Plaintiff orally, anally, and vaginally.

84. On one occasion while Plaintiff was 18 years old, Plaintiff began developing a romantic relationship with one of Plaintiff's female friends, "J". Upon orders from Officer Doseau, Plaintiff invited "J" to Officer Doseau's apartment where he encouraged them to perform oral sex in front of him while he watched. "J" expressed discomfort and cited her prior experience as a sexual assault survivor. Plaintiff then comforted and helped "J" leave the apartment. After "J" left, Officer Doseau furiously punished Plaintiff by shouting at Plaintiff, pinning Plaintiff on a rug, alluded to having a firearm in his apartment, and violently raped Plaintiff orally while making fun of "J."

85. Sometime after this incident with "J," Officer Doseau told Plaintiff that he had an extremely important test he had to study for and started spending less time with Plaintiff. Officer Doseau was vague about the test but stated that he needed to perform well because that would mean he could afford to pay for his apartment in Williamsburg without relying on his parents for financial support.

86. Officer Doseau described the test as being connected to a promotion at his job and increased pay, and that it was important for Plaintiff to give Officer Doseau space and be obedient while he prepared himself to do well.

87. In the fall of 2011, Officer Doseau told Plaintiff that he had passed the test, but became very angry when Plaintiff asked for more details on what the promotion entailed and refused to provide more information.

88. In September 2011, Officer Doseau was promoted to the rank of Sergeant Doseau.

89. In the fall of 2011, Plaintiff was starting their freshman year at the State University of New York at Purchase. Officer Doseau visited Plaintiff on campus. Typical guests to the college campus required the student to notify the Resident Advisor for the dormitory where the student was residing.

90. Upon information and belief, Sergeant Doseau was able to access campus premises using his police credentials.

91. Sergeant Doseau went with Plaintiff to their dormitory, and sexually abused and molested Plaintiff in Plaintiff's dorm room.

92. In or around late 2011, Sergeant Doseau invited Plaintiff and one of Plaintiff's classmates to his apartment to spend the night. Plaintiff's classmate was visibly queer, which generated angry insults from Sergeant Doseau. That night, Sergeant Doseau had all three of them sleep in the same bed.

93. Sergeant Doseau raped Plaintiff while Plaintiff's classmate was right next to Plaintiff in the same bed.

94. In 2012, Plaintiff was a member of the Urban Word's (UW) Youth Poetry Slam team and their routine often included staying overnight with Plaintiff's team members. But on occasion, Plaintiff would stay overnight with Officer Doseau, who would regularly provide Plaintiff wine and sexually abuse Plaintiff.

95. In June 2012, Plaintiff cut their hair short as a way of coming out to the NYC poetry community at an event, with the support of the UW Youth Poetry Slam team.

96. After the performance, at Officer Doseau's residence, Officer Doseau subjected Plaintiff to verbal abuse, demanded an explanation, used terms such as "boy" and "dyke," and told Plaintiff that Plaintiff had to grow their hair back and was not allowed to cut it that short or short ever again. Officer Doseau then punished Plaintiff by violently anally raping Plaintiff.

97. Plaintiff had little to no financial support from family and was at this point relying on Office Dosseau for transportation funds, paying for Plaintiff's school meal plan and supplement groceries, and emergencies.

98. In May 2013, Plaintiff recalls Sergeant Doseau being visibly stressed from his "work" and not wanting to see or even talk to Plaintiff. On occasions that Sergeant Doseau did speak with Plaintiff, Sergeant Doseau lashed out and blamed Plaintiff for him being distracted at work and getting in trouble.

99. On May 29, 2013, Sergeant Doseau and two police officers under his command were issued NYPD disciplinary "Charges and Specifications" regarding an incident involving an off-duty auxiliary officer. Sergeant Doseau was specifically found guilty of 2 Charges and Specifications:

1. Did fail and neglect to direct a proper investigation and ensure that a complaint report was prepared in relation to an incident involving an off-duty auxiliary police officer who was the victim of an assault and robbery. Guilty.
2. Did fail and neglect to maintain his activity log, as required. Guilty.

#### **Summer of 2013 and Plaintiff's Discovery of Sergeant Doseau's Identity**

100. In Summer 2013, the night before Plaintiff's 21st birthday, Plaintiff spent the night at Sergeant Doseau's apartment at 78 Roebling Street, #2A, Brooklyn, New York.

101. That night into the early morning, Sergeant Doseau was upset at Plaintiff's refusal to "get girls" for him and dressing "like a dyke," so Sergeant Doseau violently raped Plaintiff as punishment.

102. Later that morning, Plaintiff observed that Sergeant Doseau was wearing a suit to go to work.

103. To Plaintiff, the business suit was inconsistent with what Sergeant Doseau had been telling Plaintiff all along, which was that he worked at a gym.

104. This inconsistency caused Plaintiff to look through Sergeant Doseau's closets, where Plaintiff discovered several business suits. Disturbed, Plaintiff looked for paper to write a goodbye note explaining that Plaintiff did not want further contact with Sergeant Doseau.

105. While searching for paper and a pen, Plaintiff saw Sergeant Doseau's Haitian passport and thus discovered his actual name and age.

106. Petitioner then performed an internet search for Sergeant Doseau's name and learned that he was both a member of the NYPD and recently had been promoted.

107. After that morning in August 2013, Plaintiff stopped contacting and never spoke with Sergeant Doseau until the controlled call described below.

108. Plaintiff was terrified that Sergeant Doseau would be able to determine that Plaintiff had figured out Sergeant Doseau's identity and employer. Sergeant Doseau's brainwashing of Plaintiff was so deep that Plaintiff believed Sergeant Doseau could harm Plaintiff at any moment, and so Plaintiff lived in a paranoid state of hypervigilance expecting Sergeant

Doseau to appear to do Plaintiff harm. This paranoia was the strongest when Plaintiff was in New York City,

### **Counseling and Preparation to Report Sgt. Doseau to the NYPD**

109. Plaintiff struggled to recover from the years of deeply traumatic emotional abuse, sexual assaults, and rapes suffered at Sergeant Doseau's hands.

110. On March 12, 2015, Plaintiff began getting counseling support from Safe Horizon<sup>11</sup> to process the years-long period of abuse and prepare to make a report to the authorities. This counseling supplemented the years of mental health treatment that Plaintiff had already been getting through other providers, such as Plaintiff's school therapist.

111. Given Sergeant Doseau's rank and sense of impunity with which he had handled himself with Plaintiff, Plaintiff was fearful of retaliation as well.

112. On May 11, 2015, Plaintiff with the help of Safe Horizon attempted to set up an intake appointment with the NYPD Queens Special Victims Unit but was told that appointments were not available and that Plaintiff would have to come to the precinct in person to make a report.

### **The NYPD Special Victims Division's Organizational History of Disfunction**

113. Sexual assault causes profound and life-long harm. The trauma that sexual assault victims suffer can degrade their lives – causing depression, PTSD, anxiety, and other serious harms.

114. On information and belief, the overwhelming majority of police officers who handle sexual assault reports remain woefully untrained, and fundamentally biased against

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<sup>11</sup> Safe Horizon is a New York City based not-for-profit and is the nation's leading victim assistance organization. Safe Horizon provides direct services to sexual abuse survivors.

non-male victims of sexual assault, making misogynist and sexist assumptions about why and when survivors behave in certain ways and excusing perpetrator conduct as acceptable and/or “normal” male behavior.

115. For years, public outcry has sought to reshape the NYPD’s Special Victims Division (“SVD” or the “Division”) so that to provide it with the support and resources necessary to carry out its mission of conducting quality investigations of sexual assaults in New York City. Unfortunately for sexual assault victims and citizens of New York City, those voices have been disregarded by NYPD brass at One Police Plaza.

116. In 2010, then-Commissioner Raymond Kelly convened a Sex Crimes Working Group (“Working Group”) to address systematic mishandling and improper assigning of sexual assault investigations within the SVD.<sup>12</sup>

117. The Working Group was motivated by complaints that the NYPD was consistently improperly misclassifying sexual assaults, predominantly by purposefully downgrading them, and was mistreating sexual assault victims who reported sex *crimes to the police*.

118. The Working Group interviewed stakeholders, reviewed relevant data, and examined the rules and practices governing the NYPD’s assignment and investigation of sex crimes to make findings and recommendations presented in its Final Report.

119. Particularly relevant to Plaintiff’s case, the Working Group made the following recommendations: (1) all sex crimes should be assigned to the SVD; (2) the SVD – not ordinary patrol officers – should respond directly to hospitals when a victim reports a sex crime; (3) SVD staffing should be increased significantly, and those investigators who are reallocated to

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<sup>12</sup> See Appendix A to *An Investigation of NYPD’s Special Victims Division—Adult Sex Crimes*, [https://www.nyc.gov/assets/doi/reports/pdf/2018/Mar/SVDReport\\_32718.pdf](https://www.nyc.gov/assets/doi/reports/pdf/2018/Mar/SVDReport_32718.pdf)



the SVD should possess “advanced investigatory skills and experience”; and (4) the NYPD should enhance training, both for SVD investigators and for other officers and detectives who are likely to come into contact with sex crimes complainants as first responders.

120. In particular, the Working Group emphasized that “only highly experienced and knowledgeable detectives, such as high-caliber investigators assigned to precinct detective squads” should be considered for transfer to the SVD.

121. Despite this finding, a 2018 Report by the Office of the Inspector General into the NYPD Special Victim Division (“DOI Report”) found that the NYPD’s “adult sex crimes units have suffered from chronic understaffing issues for at least the *past nine years*.” (emphasis added).<sup>13</sup>

122. Moreover, this report found that the training that was provided to SVD investigators was characterized by SVD retirees, prosecutors, and service providers are “insufficient,” and obtained an internal NYPD documents from 2014 that described the SVD training as follows: “It does not build the inherent skill set needed to manage the complexity of Special Victims cases.”

123. The unwillingness of the NYPD to address the myriad problems plaguing the SVD stems from an entrenched gender bias among the NYPD’s leadership and the NYPD frontline. The discriminatory culture runs from the patrol level – entry level officers who are young, novice, and typically male – rise through the rank and file of the NYPD’s precincts and up to the top brass at One Police Plaza, the vast majority of whom are men who have an old-fashioned, and gendered, approach to policing. This male-dominated environment perpetuates a biased worldview in which sexual assault victims are often dismissed as having somehow invited their

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<sup>13</sup> *An Investigation of NYPD’s Special Victims Division—Adult Sex Crimes*, [https://www.nyc.gov/assets/doi/reports/pdf/2018/Mar/SVDReport\\_32718.pdf](https://www.nyc.gov/assets/doi/reports/pdf/2018/Mar/SVDReport_32718.pdf), at 1.

assaults by virtue of the clothes they chose to wear or their agreement to be in contact with the perpetrator, or which condones and/or encourages demeaning and offensive responses to sexual assault victims when they report their crimes.

124. The DOI Report described NYPD's systemic failures in the sexual assault cases, including the "shortening" and "dilution" of investigations, as causing "re-traumatiz[ation] [of] victims" and as "negatively impact[ing] the reporting of sex crimes, thereby adversely affecting public safety."<sup>14</sup>

125. The DOI Report also described instances that demonstrated a culture of disrespect and mistreatment of survivors that pushes them away from engaging with the investigatory process.<sup>15</sup>

126. The DOI Report details how internal calls for improvement, change, and additional staffing and training went ignored.

127. On information and belief, the top NYPD decision makers are driven by an inherent and/or overt gender and sex bias in their failure to properly staff, support and/or otherwise create a system that fully investigates and/or follows through on reports of sexual assault.

128. The NYPD's failures with respect to its decisions on how and whether to train or support investigations of reports of sexual assault have a disparate impact on non-male victims of sexual assault and further traumatize transsexual, intersex, transgender, and gender non-conforming individuals.

### **The Internal Affairs Bureau Has a Demonstrable Track Record Of Inadequate Responses to Police Sexual Violence**

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<sup>14</sup> *Id.*

<sup>15</sup> *Id.* at 28 ("Service providers and victim advocates described numerous instances in which inexperienced detectives or police officers responded insensitively, dismissively, or incredulously during . . . interviews")

129. NYPD's IAB is the unit assigned to detecting, investigating, and correcting police officers who engage in misconduct. But IAB has a documented history of intentionally mishandling sexual harassment investigations, leaking confidential information, and retaliating against those who make complaints.<sup>16</sup>

130. As a general matter, independent assessments of IAB investigations have demonstrated significant deficiencies in the IAB's handling of misconduct investigations.<sup>17</sup>

131. Police sexual violence against *fellow officers* sheds additional detail on the magnitude of the problem within the NYPD. A recent media report on a female NYPD officer who filed a lawsuit against numerous former co-workers, including high-ranking supervisors and a union delegate, for subjecting her to years of horrific sexual harassment, sexual assault, and rape, depicts an institution hostile to the stories of survivors and tolerant of sexual violence committed by those in their ranks.<sup>18</sup> She also alleges that videos of her assaults were "regularly shared across the department in a group chat, where high-ranking officers . . . allegedly viewed the content but did nothing about it."<sup>19</sup> Attempts by the officer to report these incidents were met by inaction or accusations that she was lying.<sup>20</sup>

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<sup>16</sup> Dirty Little Secrets in NYPD's Internal Affairs Bureau, <https://www.villagevoice.com/dirty-little-secrets-in-nypds-internal-affairs-bureau/>

<sup>17</sup> See, e.g., Commission to Combat Police Corruption 2019 Report at 27–35 (discussing various deficiencies in the IAB's handling of investigations and noting that "the Commission's satisfaction rate with the questioning in these interviews has declined significantly from 2014."), <https://www.nyc.gov/assets/ccpc/downloads/pdf/Annual-Nineteen-Report.pdf>.

<sup>18</sup> Tina Moore & Gabrielle Fonrouge, *Lawsuit Portrays a Culture of Rape, Sodomy and Sexual Harassment at the NYPD*, NY Post, June 15, 2021, available at <https://nypost.com/2021/06/15/suit-claims-culture-of-rape-sodomy-sexualharassment-at-nypd/>.

<sup>19</sup> Id.

<sup>20</sup> Id.

132. In 2018, the American Civil Liberties Union (“ACLU”) investigated the NYPD and its practice of handling accusations of sexual assault internally and documented multiple deficiencies.<sup>21</sup>

133. Similar to Sergeants Doseau and Krull, two other NYPD officers were accused of raping a fifteen-year-old girl in 2015 and 2016.<sup>22</sup> They were subsequently terminated from the force and convicted at an internal disciplinary trial in 2021.<sup>23</sup>

134. The limited publicly available information about NYPD investigations of sexual violence, both internal and external, portrays an agency grossly inept at handling these sensitive and serious matters.

#### **Plaintiff’s Hostile Treatment By SVD During Their Initial Report May 13, 2015**

135. On May 13, 2015, Plaintiff walked into the 112th NYPD Precinct accompanied by their aunt and a Safe Horizon advocate.

136. Plaintiff first made their report to a precinct desk officer, who treated Plaintiff callously and had Plaintiff wait for hours before Plaintiff could speak to a member of the Special Victims Unit.

137. Defendant Lew of the Special Victims Unit was the first NYPD officer who interviewed Plaintiff.

138. Defendant Lew expressed disbelief at Plaintiff’s assertion that the perpetrator Plaintiff was describing was in fact a member of the NYPD. For example, rather than

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<sup>21</sup> Scout Katovich, *NYPD Police Officers Union Wants to Keep Sexual Misconduct Under Wraps*, ACLU, July 31, 2018, available at <https://www.aclu.org/news/womens-rights/nypd-police-officers-union-wants-keepsexual>

<sup>22</sup> Troy Closson, *Officer Fired after N.Y.P.D. Finds He Raped Girl From Youth Program*, N.Y. TIMES, July 28, 2021, available at <https://www.nytimes.com/2021/07/28/nyregion/nypd-officers-discipline-rape.html>.

<sup>23</sup> Id.

simply performing a computer check on the name Plaintiff gave them, they challenged Plaintiff by asking questions such as:

“What do you mean he’s a cop?”

“What do you mean you checked a database?”

139. The net effect of this type of questioning was that Plaintiff felt as if they had to convince Defendant Lew to run the simple electronic check.

140. Despite their hostile attitude, Defendant Lew eventually performed the necessary database inquiries and confirmed that the name Plaintiff was providing (Joel Doseau) was in fact a member of the NYPD.

141. Defendant Lew’s demeanor then completely changed as Defendant Lew – all too late – realizes that Plaintiff was telling the truth. Defendant Lew then made a notification to IAB, but only tells Plaintiff that they are required to wait at the precinct until further notice.

#### **NYPD Internal Affairs**

142. The IAB officers notified and assigned to this case were Sergeant Odo Penniston and Lieutenant John Montaperto of IAB Group 32, which was responsible for the Patrol Borough Brooklyn South Impact Response Team.

143. For reasons unknown to Plaintiff to this day, these officers took 4 to 5 hours to arrive to the 112th Precinct after Plaintiff’s first interview by Officer Lew. By the time IAB arrived, Plaintiff’s Safe Horizon advocate was no longer present. This advocate, who had been with Plaintiff earlier in the day, was forced to leave given how late in the day it had become by the time IAB arrived.

144. At the 112th Precinct, Sergeant Odo Penniston and Lieutenant John Montaperto proceed to interview Plaintiff, who is now recounting the nightmarish events a second time.

145. Showing complete disregard of Plaintiff's psychological well-being, IAB conducted their interview of Plaintiff's allegations against Sergeant Doseau in an accusatory and hostile manner, and their questioning gave Plaintiff the impression that IAB was assuming that any and all of the sexual abuse that Sergeant Doseau committed was "consensual" and not important.

146. During this interview, Plaintiff detailed the entirety of the physical, sexual, and psychological abuse suffered at the hands of Sergeant Doseau. Plaintiff did not arbitrarily stop their narrative at age 17 – Plaintiff reported how Sergeant Doseau would continue to rape Plaintiff and attempt to use Plaintiff to find and groom other younger children up until Plaintiff was 21 years old.

147. But Plaintiff also had concerns about retaliation as well as the sensitive nature of the allegations. During the interview with the Internal Affairs officers, when Plaintiff did not have a Safe Horizon advocate<sup>24</sup> and was otherwise alone, Sergeant Penniston and Lieutenant Montaperto took it upon themselves to warn Plaintiff that the only way law enforcement could keep Plaintiff's identity anonymous was by focusing on the abuse that Plaintiff experienced prior to reaching 17.

148. Plaintiff had no reason to distrust the validity of this instruction, and going forward either minimized or did not discuss any of the abuse that occurred after Plaintiff reached 17 years of age.

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<sup>24</sup> Generally, a Safe Horizon advocate is present during sexual survivor interviews with the NYPD.

149. During this process, Plaintiff cooperated with NYPD and forwarded sexually explicit and pornographic photographs and emails that Sergeant Doseau and Plaintiff had exchanged.

150. Sergeant Penniston and Lieutenant Montaperto encouraged Plaintiff to make a controlled call at the precinct, and but Plaintiff refused citing Plaintiff's Trauma.<sup>25</sup>

#### **IAB's Needlessly Retraumatizing Scene Visits**

151. On the same day Plaintiff made their report, IAB prepared attempts to identify the locations of the abuse. Again, disregarding any protocols to protect Plaintiff from being retraumatized, Sergeant Penniston and Lieutenant Montaperto had Plaintiff accompany them in a police vehicle ride-along as they drove to the areas Plaintiff mentioned during the interview to identify the physical locations where Sergeant Doseau had committed the sexual abuse of Plaintiff.

152. This was intensely triggering to Plaintiff, in part because it mimicked the way Plaintiff was transported to the locations by Sergeant Doseau (as a passenger in a car) and also because Plaintiff was made to understand that if Plaintiff could not identify the locations, the investigation against Sergeant Doseau would not proceed.

153. Because the scene visits were attempted at nighttime, Plaintiff had difficulty identifying the locations.

154. Compounding the difficulty, the IAB officers spent very little time at each location before driving off from the location.

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<sup>25</sup> Later that day, outside of the presence of Plaintiff, the IAB officers conferred with the Queens County District Attorney's Office about Plaintiff's report and documented this conferral in "Follow Up" worksheet in the NYPD IAB file on this investigation. QCDA Special Victim Unit Chief Kenneth Appelbaum instructed the IAB officers to "urge" Plaintiff to have a controlled call.

155. As a result, Plaintiff was not able to confirm of the locations in Queens where Sergeant Doseau had sexually assaulted Plaintiff.

156. When visiting the Brooklyn locations, IAB again performed the scene visits in a rushed manner.

157. By sheer luck, Plaintiff was able to identify two of the locations to IAB.

#### **IAB's Needlessly Retraumatizing Evidence Review**

158. Again, ignoring any type of sensible protocols that would protect Plaintiff's psychological well-being, IAB conscripted Plaintiff and Plaintiff's aunt to organize the photographic evidence of Plaintiff's abuse.

159. As alleged above, over years of manipulation and coercion, Sergeant Doseau had groomed Plaintiff into complying with demands for "home-made" pornographic videos and photos, including from when Plaintiff was a minor.

160. Despite Plaintiff already having provided NYPD consent to search Plaintiff's email and social media accounts and despite IAB having the ability to make backups of electronic evidence, IAB took Plaintiff to an NYPD Precinct and had Plaintiff sit down at a computer to identify and help catalogue the pornographic pictures that Plaintiff had been forced to send to Sergeant Doseau.

161. The IAB officers explained this callous course of action to Plaintiff by stating that there was "so much [photographic evidence] that it was overwhelming" and that IAB needed Plaintiff's assistance to sort through the photographs.

162. Compounding the humiliation of the ordeal, the IAB officers printed out the pornographic photographs and laid them out in open view off other officers – complete strangers to Plaintiff and unrelated to the investigation – inside the police precinct.



163. This lack of discretion was immensely traumatizing to Plaintiff, who more than anyone is acutely aware that an NYPD uniform is no guarantee of safety or dignity.

164. After being mentally worn down by the various deficiencies in the NYPD's handling of Plaintiff's report, Plaintiff felt helpless to refuse this request and could only numbly comply.

165. Plaintiff thus proceeded to relive the abusive relationship to, in essence, do IAB's job for them.

### **The Queens County District Attorney's Office Bullies Plaintiff Into A Controlled Call**

166. On May 14, 2015, Sergeant Penniston and Lieutenant Montaperto went to the QCDA's Office to discuss the case with QCDA Special Victims Unit Chief Appelbaum. During this meeting, the IAB officers provided Appelbaum with a copy of emails and photos obtained with Plaintiff's cooperation. QCDA Special Victims Unit Chief Appelbaum also suggested to Sergeant Penniston and Lieutenant Montaperto that a forensic examination be conducted of Plaintiff's laptop.

167. On May 19, 2015, Plaintiff reported to the QCDA's Office to provide information about Sergeant Doseau.

168. At the QCDA's Office, Plaintiff was subjected to additional hostile questioning and coercive investigative tactics by QCDA Special Victims Unit Chief Appelbaum<sup>26</sup> and Assistant District Attorney Katrina Jackson-Brown.

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<sup>26</sup> In May 2021, five law professors filed an ethics complaint against Appelbaum relating to two cases where he violated ethical rules. Appelbaum's misconduct was so egregious that, after the 1992 trial of *People v. Moustakis*, the Queens Supreme Court vacated the conviction and held that Appelbaum committed *Rosario* and *Brady* violations while permitting perjured testimony. The Second Department affirmed the order vacating the conviction and held that Appelbaum violated the *Rosario* rule, but did not rule on the *Brady* issue. Then, in 2007, when Appelbaum was a Deputy Bureau Chief of the QCDA Special Victims Unit, the Queens Supreme Court dismissed a grand jury indictment due to Appelbaum's misconduct. The Court expressly notes that Appelbaum "in many instances breached his duty as a quasi-judicial officer" and "attempted to instill his influence and bias into the case." The five law professors, part of the coalition Accountability NY, have requested the Grievance Committee for the Second, Eleventh

169. Plaintiff expressed terror at the idea of having additional contact with their abuser, Sergeant Joe Doseau.

170. Nevertheless, Chief Appelbaum and ADA Jackson-Brown bullied Plaintiff into making a controlled call. For example, Chief Appelbaum insinuated that the controlled call was necessary, stating in sum and substance to Plaintiff that, “if you can’t even handle a controlled call, how do you expect to talk about this with strangers or in court?”

171. ADA Jackson-Brown downplayed Plaintiff’s trauma, with comments such as, in sum and substance, “I understand it can be real scary, daunting to speak to person who victimized you, but had even younger kids do this exercise, and they were victimized in similar ways or even worse and unimaginable ways.” This comparison made Plaintiff feel even worse, but had the effect of sapping Plaintiff’s morale so that Plaintiff agreed to make a controlled call to Sergeant Doseau.

### **The Prosecution Moves to Kings County District Attorney’s Office**

172. To Plaintiff, it appeared as if the thrust of QCDA’s questioning was to see if the investigation could be passed off to Brooklyn. Afterwards, at a later date, Plaintiff was able to confirm to the NYPD were located in Brooklyn.

173. But Plaintiff described the locations where sexual assaults occurred in Queens to the IAB officers. For reasons unknown to Plaintiff, neither the NYPD nor QCDA’s Office suggested any type of follow-up attempt to confirm the Queens locations.

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& Thirteenth Judicial Districts disbar Appelbaum. See May 3, 2021 Grievance Complaint, available at <https://accountabilityny.org/wp-content/uploads/2024/03/grievance-complaint-regarding-attorney-Kenneth-Appelbaum-state-bar-number-2047603.pdf>

174. Moreover, there were locations in Queens that Plaintiff had described as ones where abuse had taken place, that the IAB officers did not even attempt to check during the initial rushed scene visits.

175. As a result of the above, following the May 19, 2015 interview and controlled call at the QCDA's Office, the prosecution of Sergeant Doseau was transferred to the KCDA's Office.

176. Shortly thereafter, the IAB officers encouraged Plaintiff to leave the state in order to protect themselves from possible retaliation from Sergeant Dosseau while the investigation proceeded.

#### **Additional Examples of IAB's Unprofessionalism and Lack of Special Victims Training**

177. In addition to the rushed scene visits and abhorrent photo review procedure at the precinct on May 13, 2015, the IAB officers needlessly retraumatized Plaintiff in the sloppy manner that the investigation was handled after Plaintiff's initial report.

178. Plaintiff had obeyed the IAB officers instruction and gone to live out of state.

179. Sometime thereafter but before August 2015, the IAB officers contacted Plaintiff and requested Plaintiff return to New York for "a few days" to assist with the investigation.

180. Plaintiff complied with the IAB officers request and returned to New York to assist with the investigation. Upon arrival in New York, Plaintiff met with IAB officers and visited crime scenes with the IAB officers. Initially, the Plaintiff was surprised that it was only the Plaintiff and the IAB officers visiting crime scenes together.

181. The IAB officers did not explain to Plaintiff that Grand Jury testimony would be a possibility.

182. In addition to the rushed scene visits and abhorrent photo review procedure at the precinct on May 13, 2015, IAB Sergeant Penniston and IAB Lieutenant Montaperto exhibited additional signs of lack of competent training and sex bias.

183. IAB Sergeant Penniston would make lewd and misogynistic comments about women while in Plaintiff's presence.

184. This was incredibly triggering for Plaintiff, since it reminded them of the manner in which Sergeant Doseau spoke about women. Some examples include:

- At a stop light, while in a police vehicle escorting Plaintiff, IAB Sergeant Penniston wolf whistled and spoke to a woman on the street, and then commenting to IAB Lieutenant Montaperto about the woman's "fat ass" and how he liked "Spanish girls."
- On another occasion while on the street, again escorting Plaintiff and in full earshot of Plaintiff, IAB Sergeant Penniston would make comments such as "what I would love to do with that ass" and "did you see how big her tits were."

185. The above examples occurred while IAB Sergeant Penniston was on-duty, escorting a victim who had reported severe sexual assault crimes that resulted from a predatory relationship involving an older police officer.

186. Even while in a courthouse, IAB Sergeant Penniston did not let up. As Plaintiff and IAB Sergeant Penniston were preparing to testify before a Grand Jury convened by the Brooklyn District Attorney's Office, Plaintiff observed IAB Sergeant Penniston whistle at a woman<sup>27</sup> and make remarks such as about her body ("one of the fattest asses he's ever seen", "face

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<sup>27</sup> Plaintiff does not know if this woman was a grand juror or member of the court staff.

was really beautiful”) and alluded to having cheated on his wife in the past and wanting to do that again only this time with said woman.

### **Sergeant Doseau is Indicted and a Search Warrant is Executed**

187. On August 3, 2015, the KCDA’s Office secured a Grand Jury Indictment charging Sergeant Doseau with 40 counts of violations of the Penal Law.

188. For reasons not fully explained to Plaintiff, the KCDA’s Office only moved to prosecute charges relating to the sexual abuse Plaintiff suffered prior to turning 17 years of age.

189. On the morning of August 5, 2015, the Kings County District Attorney’s Office submitted an application for a search warrant of Sergeant Doseau’s residence at 78 Roebling Street, Apt. 2A, Brooklyn, New York, 11211.

190. The Honorable Justice John G. Ingram, found “that there is probable cause to believe that evidence of the crime of Possessing a Sexual Performance by a Child (Penal Law § 263.16), and Promoting a Sexual Performance by a Child (Penal Law§ 263.15) will be found within” said premises. The warrant also authorized the forensic examination of, *inter alia*, all computers, internet search histories, computer files, photography equipment including cameras, handwritten and computer notes, email, and “[e]vidence of affiliations, memberships, buddy lists, profiles, chat sessions and chat services, billboards, newsgroups, and websites pertaining to child pornography.”

191. The following property was recovered from Sergeant’s residence pursuant to the search warrant and vouchered by NYPD under three voucher numbers:

A. Voucher No. 6000011151

- a. ONE (1) BLACK APPLE MACBOOK WITH CASE, & POWER CABLE
- b. ONE (1) BLACK WESTERN DIGITAL EXTERNAL HARD DRIVE

- c. ONE (1) BLACK WESTERN DIGITAL MY BOOK HARD DRIVE
- d. ONE (1) BLACK SANYO TAPE RECORDER WITH CASSETTE TAPE
- e. ONE (1) POWER CORD AND ONE (1) CASSETTE TAPE HOLDER
- f. ONE (1) GRAY SONY CAMCORDER WITH POWER ADAPTOR
- g. ONE (1) BLACK 2GB SANDISK MICRO SD CARD
- h. ONE (1) BLUE 1GB SANDISK SD CARD IN CASE
- i. ONE (1) BLACK 8GB ATIACHE USB THUMB DRIVE
- j. ONE (1) BLACK 4GB HP USB THUMB DRIVE

B. Voucher No. 6000011151

- a. ONE (1) BLACK APPLE IPHONE 4S CELL PHONE WITH CASE
- b. ONE (1) BLACK APPLE IPHONE 5S CELL PHONE WITH CASE
- c. ONE (1) BLACK HTC LIBERTY CELL PHONE WITH CASE
- d. ONE (1) BLACK BLACKBERRY CELL PHONE
- e. ONE (1) BLACK MOTOROLA CELL PHONE

C. Voucher No. 6000011153

- a. FOUR (4) BOOKS AND ONE (1) LETTER

192. The search warrant “specifically authorized” the NYPD “to conduct a forensic examination upon any computers and related media. seized for the purpose of searching for evidence of the crimes of Possessing a Sexual Performance by a Child (Penal Law § 263.16) and Promoting a Sexual Performance by a Child (Penal Law § 263 .15)”

193. Despite this legal authority, Plaintiff was never advised of the results of any forensic searches or examinations.

194. In other words, the extent of Sergeant Doseau's creation and distribution of child pornography that he manipulated Plaintiff into creating and transmitting is an open question that has gone unexamined.

### **Sergeant Doseau is Placed Under Arrest and Prosecution Abated by Death**

195. On August 5, 2015, Sergeant Doseau was placed under arrest and arraigned on the above-mentioned indictment.

196. On August 20, 2015, Sergeant Doseau "was found dead with a plastic bag over his head...A hose attached to a nearby butane tank fed gas into the bag."<sup>28</sup>

197. On October 1, 2015, the criminal prosecution of SGT was abated by death.

### **Police Privileges and Training Made This Possible**

198. As detailed above, Officer/Sergeant Doseau's police training in techniques such as interrogation assisted his abuse in manipulating and coercing Plaintiff into submission.

199. Whenever Officer/Sergeant Doseau drove around with Plaintiff in his car, he did so with impunity. Officer/Sergeant Doseau never displayed any concern for parking tickets, and instead double parked without reservation. Routinely, Officer/Sergeant Doseau was able to speak to police officers in a friendly way and "schmooze" the situation so that he would not receive a ticket.

200. On several occasions during the years long abuse, Plaintiff would get phone calls from a blocked phone number that Doseau would explain as his "work phone." The fact that it was a "work phone" – i.e. a cell phone provided by the NYPD – did not prevent Officer/Sergeant Doseau from having sexually explicit conversations with Plaintiff.

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<sup>28</sup> See *Brooklyn Cop Accused Of Raping Girl Kills Himself*, <https://gothamist.com/news/brooklyn-cop-accused-of-raping-girl-kills-himself> (last accessed April 11, 2024).

201. Additionally, on one occasion, when Plaintiff was under the age of 17, then-Officer Doseau set one of the sexually lewd photographs that he had coerced from Plaintiff as Officer Doseau's background on his NYPD cell phone. A supervising officer took note, and advised Officer Doseau that he "can't have a picture like that" on the phone and Officer Doseau later changed his phone background.

202. Plaintiff did not hear of any additional discipline or investigation regarding this incident.

### **NYPD's Hiring Practices and Failure to Supervise**

203. Plaintiff alleges that during the pre-employment hiring process for Officer Doseau, the NYPD Candidate Assessment Division disregarded background information that tended to support that Officer Doseau would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and minors/women but, certified him for hire anyway as a police officer.

204. Sergeant Doseau had two sealed and dismissed arrests at time of his application to NYPD.

205. In addition, Sergeant Doseau had been sexually abused as a child and had anger management issues. Both of these issues should have been discovered and addressed during NYPD's pre-employment hiring process.

206. Plaintiff alleges that during the completion of the initial in-service training at the NYPD Police Academy for Officer Doseau, instructors disregarded training indicators that tended to support Officer Doseau would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and minors/women, but certified him for graduation anyway.



207. Plaintiff alleges that during the pre-certification for the Promotion to Sergeant for Joel Doseau, police supervisors along with the Risk Management Bureau disregarded performance indicators that tended to support that Sergeant Doseau would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified Sergeant Doseau for promotion anyway.

208. One example of such indicators is that in the IAPRO system, there were fourteen OG complaints and 2 misconduct complaints listed for Sergeant Doseau at the time of his arrest.

209. Plaintiff alleges that Officers Penniston, Montaperto, and Lew received inadequate training that increased the likelihood that they would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified them anyway.

210. Plaintiff alleges that Officer Doseau received inadequate training that increased the likelihood that they would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified them anyway.

211. Plaintiff alleges that Officers Penniston, Montaperto, and Lew received inadequate supervision that increased the likelihood that they would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified them anyway.

212. Plaintiff alleges that Officer Doseau received inadequate supervision that increased the likelihood that they would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified them anyway.

213. Plaintiff alleges that Officers Penniston, Montaperto, and Lew received inadequate discipline that increased the likelihood that they would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified them anyway.

214. Plaintiff alleges that Officer Doseau received inadequate discipline that increased the likelihood that they would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and others, but certified them anyway.

215. Plaintiff alleges that the misogynistic and undisciplined culture of the NYPD increases the likelihood that employees would engage, participate and/or condone sexual violence and mental abuse of Plaintiff and other complainants of sexual violence.

216. The NYPD's negligent supervision and promotion of pedophiles, as with Sergeant Doseau, is not a one-off incident. In 2013, *another* NYPD sergeant, Vladimir Krull, was beginning to have an abusive relationship with a then-13 year old girl.<sup>29</sup>

217. Sergeant Krull was arrested on multiple counts of rape and sex abuse in 2015, the same year that Sergeant Doseau was ultimately arrested after Plaintiff courageously came forward.

#### **Effects on Plaintiff of Grooming Abuse and Current Retaliation**

218. As a direct and proximate result of Defendants' conduct described herein, Plaintiff suffered and continues to suffer great pain of mind and body, severe and permanent emotional distress, and physical manifestations of emotional distress. Plaintiff has been prevented from obtaining the full enjoyment of life; has incurred and will continue to incur expenses for medical and psychological treatment, therapy, and counseling; and has incurred and will continue to incur loss of income and/or loss of earning capacity.

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<sup>29</sup> See *NYPD Sergeant Accused of Raping Girl, 13*, February 11, 2015, <https://www.nbcnewyork.com/news/local/nypd-sergeant-arrested-sex-abuse-minor-rape-police/2011591/> and *NYPD sergeant convicted of twice raping girlfriend's daughter, 13, and forcing her to perform sex act on him at school after taking her to the father/daughter breakfast gets just THREE years in prison*, March 13, 2017, <https://www.dailymail.co.uk/news/article-4310406/NYPD-sergeant-convicted-rape-girl-13-gets-3-years.html>.

219. As a result of the rapes, Plaintiff has been diagnose with Complex Post-Traumatic Stress Disorder (“CPTSD”) and can become inconsolably triggered in certain circumstances, such as someone walking in on them in a bathroom. CPTSD episodes can be life-threatening to survivors in various ways, causing suicide ideation, psychosis, fugue states, all of which Plaintiff has and continues to experience. The CPTSD has devastating effects on Plaintiff’s other medical conditions, which include Mast Cell Activation Syndrome, asthma, and chronic obstructive pulmonary disease, such that a CPTSD episode has the ability to cause asphyxiation in Plaintiff. Plaintiff has in the past lost consciousness and been hospitalized before because of these episodes, which have the capacity to kill Plaintiff.

220. As a victim of the sexual abuse allowed by the Defendants, Plaintiff is unable at this time to fully describe all of the details of that abuse and the extent of the harm they suffered as a result.

221. Plaintiff’s physical and psychological abuse from at the hands of Sergeant Doseau has been exacerbated by the pain and humiliation inflicted on Plaintiff by NYPD officers, including Officers Penniston, Montaperto, and Lew, who trivialized Plaintiff’s complaints and failed to take appropriate and reasonable responses to Plaintiff exposing incredibly serious misconduct against a fellow NYPD Sergeant that was actively working on cultivating grooming relationships with underage girls.

222. Moreover, Plaintiff’s physical and psychological injuries remain present to this day and are in fact being made worse by deliberate harassment by the NYPD. Harassment of transgender persons by NYPD is nothing new,<sup>30</sup> and Plaintiff has personally been subjected to

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<sup>30</sup> In 2020, the New York Civil Liberties Union and the ACLU LGBT & HIV Project announced a settlement with the NYPD on behalf of Linda Dominguez, a transgender advocate who the NYPD harassed during a street encounter. See <https://www.nyclu.org/en/press-releases/transgender-advocate-settles-suit-against-nypd-discriminatory-arrest-and-harassment>. (“A 2017 report by the city’s inspector general found that many police

harassing behavior and language from police officers in the past simply for existing as a trans person in New York City.

223. But in the weeks after the summons in this case was filed, Plaintiff has observed a demonstrable increase and escalation in police presence in their neighborhood, near the MTA subway station closest to Plaintiff's residence, and, in recent weeks, near Plaintiff's place of employment.

224. Beginning in or around November 2023, Plaintiff has observed a recurring set of marked and unmarked NYPD vehicles parked on Plaintiff's street across Plaintiff's apartment with line of sight into Plaintiff's windows, as if surveilling Plaintiff's residence.

225. The police activity escalated to harassment, as a pattern emerged after Plaintiff began observing the above vehicles. As Plaintiff would be walking in Plaintiff's neighborhood – either walking to or from their local subway station – NYPD vehicles (sometimes marked, sometimes not) would “tail” Plaintiff by driving slowly behind them for no apparent reason. This pursuit seemed coordinated amongst multiple vehicles, as in one instance when Plaintiff “lost” one of the vehicles by walking up a one way street, Plaintiff immediately thereafter saw another police vehicle waiting for them to re-engage the surveillance. On some of these occasions, the NYPD officers would engage police sirens in short bursts.

226. On one night during this ordeal, Plaintiff observed flashlights being shone into Plaintiff's bedroom window. The flashlight was not aimed in a constant state, but rather would be flickered on and off repeatedly, so as to create a strobing effect of regular flashes of light that startled and alarmed Plaintiff.

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officers have not been trained on the revised patrol guide and the department's system for tracking complaints against officers is inadequate.”).

227. Plaintiff filed their summons on November 24, 2023. (See Exhibit 2). The summons included in it a notice of the intentional and negligent torts that would be alleged and described that the action would include theories such as negligent supervision, negligent retention, negligent training and failure to train and include torts addressing the NYPD's failure to properly staff, support and/or otherwise create a system that fully investigates and/or follows through on reports of sexual assault.

228. Given the proximity in time and relationship between the actors (Plaintiff is suing the NYPD and it was Plaintiff's report that led to Sergeant Doseau's arrest and suicide), there is a plausible inference that the above surveillance and harassment is retaliation by members of the NYPD.

229. These instances of unjustified harassment – which are ongoing – continue to trigger Plaintiff and cause additional emotional harm.

### **CAUSES OF ACTION**

#### **FIRST CAUSE OF ACTION Negligence**

230. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

231. Defendant City of New York knew, or was negligent in not knowing, that Sergeant Joel Doseau posed a threat of sexual abuse to children, including Plaintiff.

232. At all times material hereto, with regard to the allegations contained herein, Sergeant Joel Doseau was under the direct supervision, employ and/or control of Defendant City of New York.

233. The acts of Sergeant Joel Doseau described hereinabove were undertaken, and/or enabled by, and/or during the course, and/or within the scope of his employment, appointment, and/or agency with Defendant City of New York.

234. Defendant City of New York owed Plaintiff a duty to protect Plaintiff from Sergeant Joel Doseau's sexual deviancy, both prior to and/or subsequent to Sergeant Joel Doseau's misconduct.

235. Defendant City of New York had a duty to supervise and prevent known risks of harm to the children of its school by its agents, servants and/or employees.

236. Defendant City of New York had the power, ability, authority and duty to intervene with and/or stop the improper conduct that resulted in Plaintiff being sexually abused by Sergeant Joel Doseau.

237. Defendant City of New York's willful, wanton, grossly negligent and/or negligent act(s) of commission and/or omission, resulted directly and/or proximately in the damages set forth herein.

238. At all times material hereto, Defendant City of New York's actions were willful, wanton, malicious, reckless, and outrageous in their disregard for the rights and safety of Plaintiff.

239. As a result of the negligence of Defendant City of New York and/or its agents, servants and/or employees, Plaintiff was caused serious personal injuries, emotional distress, mental pain and suffering, mental anguish.

240. By reason of the foregoing, Defendant City of New York is liable to Plaintiff for compensatory damages and for punitive damages, together with interest and costs.

## **SECOND CAUSE OF ACTION**

**Negligent Hiring, Retention, and Supervision**

241. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

242. Defendant City of New York hired Sergeant Joel Doseau.

243. Defendant City of New York hired Sergeant Joel Doseau for a position that required him to work closely with members of the community from a position of authority, including children.

244. Defendant City of New York was negligent in hiring Sergeant Joel Doseau because it knew, or should have known through the exercise or reasonable care, of Sergeant Joel Doseau's propensity to develop inappropriate relationships with children in his charge.

245. Sergeant Joel Doseau would not and could not have been in a position to sexually abuse Plaintiff had he not been hired by Defendant City of New York and received all the training, powers, and privileges that come with being an NYPD Police Officer.

246. The harm complained of herein was foreseeable.

247. Plaintiff would not have suffered the foreseeable harm complained of herein but for the negligence of Defendant City of New York in having placed Sergeant Joel Doseau and/or allowed Sergeant Joel Doseau to remain in his position.

248. At all times while Sergeant Joel Doseau was employed or appointed by Defendant City of New York, he was supervised by Defendant City of New York and/or its agents and employees.

249. At all times while Sergeant Joel Doseau was employed or appointed by Defendant City of New York he was under the direction of, and/or answerable to, Defendant City of New York and/or its agents and employees.

250. Defendant City of New York was negligent in its direction and/or supervision of Sergeant Joel Doseau in that it knew or should have known, through the exercise of ordinary care that Sergeant Joel Doseau's conduct would subject third parties to an unreasonable risk of harm, including Sergeant Joel Doseau's propensity to develop inappropriate relationships with children and to engage in sexual behavior and lewd and lascivious conduct with such children including the minor Plaintiff.

251. Defendant City of New York failed to take steps to prevent such conduct from occurring.

252. Defendant City of New York retained in his position as a Police Officer and protector to the public, including Plaintiff, and thus left him in a position to continue such behavior.

253. Defendant City of New York was further negligent in its retention, supervision, and/or direction of Joel Doseau in that Joel Doseau sexually harassed and controlled Plaintiff through communications from Joel Doseau's work cell phone and kept photographic evidence of his abusive relationship with Plaintiff on said work cell phone, which was owned and operated by Defendant City of New York through the NYPD.

254. Defendant City of New York failed to take reasonable steps to prevent such events from occurring through its property.

255. At all times relevant herein, Defendant City of New York failed to adequately train its staff, including its superintendents and other supervisors, to supervise and



monitor its police officers, personnel, or other staff, including Joel Doseau, to prevent and/or minimize the risk of them from committing acts of sexual abuse.

256. Joel Doseau would not and could not have been in a position to sexually abuse Plaintiff had Joel Doseau not been negligently retained, supervised, and/or directed by Defendant City of New York as a Police Officer and protector to the public, including Plaintiff.

257. By reason of the foregoing, Defendants, jointly, severally and/or in the alternative, are liable to Plaintiff for compensatory damages and for punitive damages, together with interest and costs.

258. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

259. Defendant City of New York had a duty to supervise and prevent known risks of harm to the children of its school by its agents, servants and/or employees.

260. Defendant City of New York had the power, ability, authority and duty to intervene with and/or stop the improper conduct that resulted in Plaintiff being sexually abused by Joel Doseau.

261. As a result of the negligence of Defendant City of New York and/or its agents, servants and/or employees, Plaintiff was caused serious personal injuries, emotional distress, mental pain and suffering, mental anguish and/or physical manifestations thereof, and other losses, all of which have not as of yet been ascertained.

262. Plaintiff's claim is timely pursuant to the New York Adult Survivors Act, N.Y. C.P.L.R 214-j.

## **CAUSE OF ACTION**

### **Negligent Training**

263. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

264. Defendant City of New York hired Officers Penniston, Montaperto, and Lew and placed said officers in a position to exert power, influence, authority, and control over victims of sexual assault making reports to NYPD, including Plaintiff.

265. At all times relevant herein, Defendant City of New York knew Officers Penniston, Montaperto, and Lew would be in situations where Officers Penniston, Montaperto, and Lew would be alone with non-male survivors where Officers Penniston, Montaperto, and Lew could mishandle complaints of sexual abuse.

266. As evidence by Officers Penniston, Montaperto, and Lew's improper, counter-productive, coercive, and harmful treatment of Plaintiff, Officers Penniston, Montaperto, and Lew had the propensity to mishandle complaints of sexual abuse.

267. At all times relevant herein, NYPD jail and/or detention system rules did not adequately define and prohibit sexual misconduct involving its employees.

268. At all times relevant herein, the NYPD employee/personnel manual lacked a clear and specific provision regarding staff sexual contact with detainees that failed to set forth penalties for violations.

269. Defendant City of New York's failure to adequately train Officers Penniston, Montaperto, and Lew in areas such as sexual abuse, sexual harassment, sensitivity, investigation of sexual abuse, grooming, child pornography and related matters constitutes negligent training.

270. Defendant City of New York's failure to train its supervisory staff to adequately and reasonably supervise and monitor Officers Penniston, Montaperto, and Lew constitutes negligent training.

271. At all times relevant herein, Defendant City of New York failed to adequately train its staff, including its superintendents and other supervisors, to supervise and monitor its police officers, personnel, or other staff, including Officers Penniston, Montaperto, and Lew, to prevent and/or minimize the risk of them causing unnecessary emotional and psychological harm to reporters of sexual assault, such as Plaintiff.

272. Defendant City of New York's failure to adequately train its staff as described herein constitutes negligent training.

273. Upon information and belief, Defendant City of New York's knowledge of prior mishandling of reports of sexual abuse and other Special Victims crimes, which are in Defendants' exclusive possession, further put Defendant City of New York on notice of Officers Penniston, Montaperto, and Lew's propensity to mishandle reports of sexual abuse.

274. Defendant City of New York's acts and omissions described above were the proximate cause of, and a substantial contributing factor to, Plaintiff's injuries and damages described herein.

275. Plaintiff's claim is timely pursuant to the New York Adult Survivors Act, N.Y. C.P.L.R 214-j.

**SECOND CAUSE OF ACTION**  
**Battery against the Estate of Joel Doseau**

276. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

277. Joel Doseau's acts described above constitute violations of New York Penal Law Article 130, including SS 130.25 (rape in the third degree), 130.40 (criminal sexual act in the third degree), and 130.20 (sexual misconduct).

278. When Joel Doseau forcibly performed the violations of New York Penal Law Article 130 described herein, that contact was harmful and offensive to Plaintiff, and Plaintiff could not nor did not consent to the contact.

279. Joel Doseau's conduct was the direct and proximate cause of Plaintiffs' past and future substantial damages, including significant pain and suffering, lasting psychological and financial harm, and loss of dignity.

280. Plaintiff's claim is timely pursuant to the New York Adult Survivors Act, N.Y. C.P.L.R. 214-j.

**THIRD CAUSE OF ACTION**  
**Crime of Violence Motivated by Gender**  
**New York City Victims of Gender-Motivated Violence Protection Law**  
**N.Y.C. Admin. Code §§ 10-1102 et seq.**  
**Against Estate of Joel Doseau**

281. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

282. The above-described conduct of Joel Doseau, including but not limited to Doseau's repeated sexual assault and or harassment of Plaintiff, violate the VGMVPL, New York City Administrative Code § 10-1104.

283. Joel Doseau's acts described above constitute crimes of violence and violations of New York Penal Law Article 130, including SS 130.25 (rape in the third degree), 130.40 (criminal sexual act in the third degree), and 130.20 (sexual misconduct).

284. Joel Doseau's crimes of violence against Plaintiff were motivated at least in part by Plaintiff's gender and animus based on Plaintiff's gender.

285. As a result of Joel Doseau's crimes of violence motivated by gender against Plaintiff, Plaintiff has been damaged and is entitled to compensatory damages in an amount to be determined at trial.

286. Joel Doseau's actions in violation of the VGMVPL were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to Plaintiff's rights, for which they are entitled to an award of punitive damages.

287. Plaintiff is also entitled to recover attorneys' fees and costs pursuant to New York City Administrative Code § 10-1104(c).

288. Plaintiff's claim is timely pursuant to the New York Adult Survivors Act, N.Y. C.P.L.R 214-j.

**FORTH CAUSE OF ACTION**  
**New York City Victims of Violent Crime Protection Act**  
**N.Y.C. Admin. Code §§ 10-401 et seq.**

289. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

290. Joel Doseau's acts described above constitute crimes of violence and violations of New York Penal Law Article 130, including §§ 130.25, 130.40, and 130.20.

291. As a result of Joel Doseau's acts, Plaintiff suffered the damages alleged herein and is entitled to compensatory damages in an amount to be determined at trial.

292. Joel Doseau's acts were intentional, done with malice, and/or showed a deliberate, willful, wanton, and reckless indifference to Plaintiff's rights, for which they are entitled to an award of punitive damages.

293. Plaintiff is also entitled to recover attorneys' fees and costs pursuant to New York City Administrative Code § 10-403.

294. Plaintiff's claim is timely pursuant to the New York Adult Survivors Act, N.Y. C.P.L.R 214-j.

### **FIFTH Cause of Action**

#### **Negligent Infliction of Emotional Distress**

295. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

296. The conduct of Defendants City of New York, Officer Odo Penniston, Officer John Montaperto, and Officer Jennifer Lew created an unreasonable risk of causing emotional distress to Plaintiff, and Defendants knew or should have known that such conduct was likely to result in emotional distress that might and/or likely would cause illness or bodily harm.

297. Plaintiff's emotional distress was foreseeable to Defendants.

298. As a direct and proximate result of the negligent conduct of Defendants, Plaintiff suffered and will continue to suffer severe emotional distress.

299. The Defendants' conduct was wanton, malicious, willful and/or cruel, entitling the plaintiff to punitive damages.

300. Plaintiff's claim is timely pursuant to the New York Adult Survivors Act, N.Y. C.P.L.R 214-j.

**SIXTH CAUSE OF ACTION**  
**Violation of New York City Administrative Law § 8-107**

301. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this complaint with the same force and effect as if fully set forth at length herein.

302. Plaintiff is an aggrieved person, as defined in the New York City Administrative Code § 8-502(a).

303. The NYPD is a “place or provider of public accommodation” as defined in the New York City Administrative Code § 8-102.

304. All officers, detectives, sergeants, and other members of the NYPD referenced herein, including but not limited to Defendants Caban, Maddrey, Kenny, Penniston, Montaperto, and Lew, were acting in their capacities as an “agent or employee” of the NYPD.

305. New York City Administrative Code § 8-107(4) states that “it shall be unlawful”: “Because of any person's actual or perceived...gender...sexual orientation...directly or indirectly: (a) To refuse, withhold from or deny to such person the full and equal enjoyment, on equal terms and conditions, of any of the accommodations, advantages, services, facilities, or privileges of the place or provider of public accommodation”.

306. New York City Administrative Code § 8-107(4) states that “it shall be unlawful:” “Directly or indirectly to make any declaration... to the effect that:... (a) Full and equal enjoyment, on equal terms and conditions, of any of the accommodations, advantages, facilities, and privileges of any such place or provider of public accommodation shall be refused, withheld from or denied to any person on account of gender [or] sexual orientation[.]”

307. New York City Administrative Code § 8-107(6) states that “[i]t shall be an unlawful discriminatory practice for any person to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this chapter, or to attempt to do so.”

308. Defendants violated Section 8-107 by refusing, withholding, and/or denying Plaintiff, because of their gender identity, the full and equal enjoyment, on equal terms and conditions, of the accommodations, advantages, services, facilities and privileges the NYPD has committed to provide.

309. Pursuant to policies and practices instituted by NYPD leadership, including Defendants Caban, Maddrey and Kenny, the NYPD did not provide to Plaintiff the basic investigative services promised to all members of the public who report the occurrence of a crime and re-victimized Plaintiff by the actively hurtful way in which the NYPD officers purported to receive their report.

310. Pursuant to policies and practices instituted by NYPD headquarters, including Defendants Caban, Maddrey, and Kenny, the NYPD discriminated against Plaintiff in the provision of its investigative services, which are promised to all members of the public who report the occurrence of a crime.

311. Defendants have promoted and supported, or in the alternative, know of and do not correct, a male-dominant culture within the NYPD that is infused with inherent and/or overt gender and sex bias that includes, without limitation, misogynistic and/or sexist assumptions about how victims of sexual assault should act or react during or to a sexual assault and/or sexist assumptions about what acceptable male behavior is. Such sex and gender bias motivated the manner in which both Plaintiffs’ reports of sexual assault were handled and caused Plaintiffs significant harm.



312. Defendant Caban was responsible for decisions regarding the implementation and/or retention of policies and practices that, upon information and belief, caused harm to Plaintiffs because as a result of those decisions, Plaintiffs were mistreated by and their investigation was mishandled and/or misclassified by inexperienced and/ poorly trained officers such as Special Victims Division Officer Lew and IAB Officers Penniston and Montaperto, both of whom appeared to have no special victims training whatsoever.

313. Defendant Maddrey was responsible for decisions regarding the implementation and/or retention of policies and practices that, upon information and belief, caused harm to Plaintiff because as a result of those decisions, Plaintiff was mistreated by and their investigation was mishandled and/or misclassified by inexperienced and/or poorly trained officers such as Special Victims Division Officer Lew and IAB Officers Penniston and Montaperto.

314. Defendant Kenny was responsible for decisions regarding the implementation and/or retention of policies and practices that, upon information and belief, caused harm to Plaintiff because as a result of those decisions, Plaintiff was mistreated by and their investigation was mishandled and/or misclassified by inexperienced and/or poorly trained officers such as Special Victims Division Officer Lew and IAB Officers Penniston and Montaperto.

315. Upon information and believe, male victims of crimes of equivalent severity are treated properly by the NYPD, with appropriate interviewing methods and follow up implemented pursuant to policies and practices promulgated by NYPD headquarters. Specifically, the NYPD devotes sufficient resources, training, and support for follow up of and investigation into reported crimes of equivalent severity that impact men as much or more than women and other non-males.

316. On the basis of Plaintiffs' gender and sex, the NYPD denied, withheld, and/or refused outright to Plaintiff the full enjoyment of, on equal terms and conditions, the provision of its services to Plaintiff.

317. The discriminatory policies and practices of the NYPD, which deny, withhold, and/or refuse the provision of police services to victims of sexual assault and/or provide such services in a discriminatorily hostile manner, cause a disparate impact on the basis of gender or perceived gender.

318. To the extent NYPD services were provided to Plaintiff, they were provided in a discriminatorily hostile manner because of Plaintiff's gender or perceived gender and/or through policies and practices that had a discriminatory disparate impact on Plaintiff because of their gender or their perceived gender.

319. Defendants' conduct was intentional, willful, and taken in disregard for the rights of Plaintiff.

320. As a direct and proximate result of the unlawful conduct detailed above, Plaintiff sustained substantial damages in amounts to be determined at trial.

321. Pursuant to New York City Administrative Code § 8-502(c), Plaintiffs will serve a copy of this complaint upon the City Commission on Human Rights and Corporation Counsel within ten days of filing this Complaint.

### **PRAYER FOR RELIEF**

WHEREFORE, Plaintiff respectfully request that judgment be entered against Defendants as follows:

- a. Ordering Defendants to pay compensatory damages in an amount to be determined at trial;

- b. Ordering Defendants to pay punitive or exemplary damages in an amount to be determined at trial;
- c. Ordering Defendants to pay reasonable attorneys' fees and costs and interest; and
- d. Awarding such other and further relief, including all disbursements and pre- and post-judgment interest, as the Court may deem just and proper.

Dated: May 13, 2024

**VASQUEZ SEGARRA LLP**

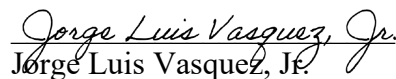
By: Jorge Luis Vasquez, Jr.  
Jorge Luis Vasquez, Jr., Esq.  
Esperanza Segarra, Esq.  
jorge@vslplaw.com  
esperanza@vslplaw.com  
5 West 37th Street, Suite 6003  
New York, NY 10018  
Tel.: 212.752.8408  
Fax: 212.752.8459

## ATTORNEY VERIFICATION

**JORGE LUIS VASQUEZ, Jr.** an attorney duly licensed to practice law before the Courts of the State of New York hereby affirms the following under penalty of perjury:

I have read the annexed **VERIFIED COMPLIANT** and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon all information provided by plaintiff and investigated by this office. The reason I make this affirmation instead of plaintiff is that plaintiff resides in a different county than where affirmant has his office.

Date: New York, New York  
May 13, 2024

  
Jorge Luis Vasquez, Jr.